

Meena Devi v. State of U.P. And 2 Others

High Court of Judicature at Allahabad · Division Bench · 11 September 2019 · Writ-C No. 26457 of 2019 · WRIT - C No. 26457 of 2019 · **Writ disposed with liberty to apply to the Executive Engineer for clause 6.14 installments.**

HEADNOTE

A writ challenging a recovery citation for electricity dues, coupled with an offer to pay if installments were fixed, was disposed of by relegating the consumer to the Executive Engineer. Under clause 6.14 of the U.P. Electricity Supply Code, 2005 that officer is the competent authority to grant time for payment in installments and shall consider any application filed within six weeks in accordance with law.

FACTUAL SUMMARY

Meena Devi petitioned the Allahabad High Court challenging a recovery citation dated 24 July 2019 for electricity dues of Rs. 7,55,194. Her only recorded submission was that she was ready and willing to pay the dues if installments were fixed. Counsel for respondents 2 and 3 accepted notice. The Court heard the petitioner and did not examine the citation on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity dues

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 makes the concerned Executive Engineer the competent authority to grant time for payment of electricity dues in installments. A writ seeking that facility against a recovery citation is disposed of with liberty to apply to the Executive Engineer, who shall consider any application filed within six weeks in accordance with law. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 24.07.2019 AND WHETHER INSTALLMENTS OUGHT TO BE GRANTED ON THE RS. 7,55,194 DEMAND

Left to the Executive Engineer to consider any clause 6.14 application in accordance with law. ¶ 4